

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 11, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Pete Laybourn, Mike Luna, Scott Roybal, Dr. Mark Rinne, Dicky Shanor and Jeff White. Absent: Richard Johnson. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Mayor Orr called for a moment of silence in remembrance of the anniversary of the September 11, 2001 national tragedy.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Shanor, and pursuant to support received by Mr. Case and Mr. Roybal, Agenda Item #16 was removed from the Consent Agenda. Mr. Shanor recused himself from voting participation on the Consent Agenda items due to an affiliation with the State Land and Investment Board (Consent Agenda Item #22), and vacated Council Chambers. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Council Chambers.

[CA] Minutes from Regular Meeting of the Governing Body on August 28, 2017. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (voucher payable to himself) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. White. Upon inquiry, Vicki Nemecek, Director of Public Works, provided information on past and current funding source for services by Goat Green, LLC (vegetation management along Dry Creek and Crow Creek), and purpose of a professional services agreement with Tabitha Merkow (Fleet Maintenance personnel training). Comment was made regarding future review of funding that may be available for goat grazing services. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

ORDINANCE – 3rd READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, Section 5.1.3 Official Zoning Map, and Section 5.6.2. PUD – Planned Unit Development District, of the Unified Development Code, changing the zoning classification from PUD Planned Unit Development to PUD Planned Unit Development for a portion of Lot 2, Block 1 of Buffalo Ridge Estates, 10th Filing, City of Cheyenne, Laramie County, Wyoming (located west of and adjacent to Sunflower Road, south of Sagebrush Ave).

Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Support was voiced for the development project planned for the property. Motion carried. Voting “yes” -- all members of the governing body present. (#4198)

ORDINANCE – 3rd READING –Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 5.1 of the Cheyenne Unified Development Code (UDC) to allow utility stations within the AG, AR, and AD zoning districts after an administrative use approval. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body present. (#4199)

ORDINANCE – 3rd READING –Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 1.4.4 and 5.1 of the Cheyenne Unified Development Code (UDC) to allow home occupations as a permitted use within the NB, CB, CBD, LI, and HI zoning districts. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” -- all members of the governing body present. (#4200)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of the S½SE¼ Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located north of and adjacent to Dell Range Boulevard, east of Griffith Avenue). Mr. Roybal moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” -- all members of the governing body present. (#4201)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium-density Residential to MR Medium-density Residential for a portion of the S½SE¼ Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located north of and adjacent to Dell Range Boulevard, east of Griffith Avenue). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present. (#4202)

ORDINANCE – 2nd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Sections 1.4.3 and 5.7.1 of the Cheyenne Unified Development Code (UDC) to clarify the definition of ‘through lot’ for accessory structure setback purposes. Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 1st READING - Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from A-1 – Agriculture and Rural Residential (County) to AR Agricultural Residential for all of Blocks 146, 147, 148 and 149, Inclusive, Interior Heights, Second Filing, City of Cheyenne, Laramie County, Wyoming; along with all of those adjacent rights-of-way contained within the plat boundary (including all of those intervening 15' alleys and all of those intervening portions of Kelley Avenue, Gadds Avenue and Holmes Avenue); and the remaining one-half (1/2) of those adjacent rights-of-way as shown (including E.40' York Avenue, N.30' 12th Street, W.40' Talbot Avenue and S.30' 11th Street), City

of Cheyenne, Laramie County, Wyoming (located to the northwest of the intersection of W. College Drive and Grand Harmony Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Repealing Chapter 5.32, Bingo and Pull Tabs, in its entirety; amending Chapter 5.04, Business Licenses Generally, Section 5.04.030, Types of businesses, activities and events, and Chapter 5.08, Business License Fees, Section 5.08.050, Bingo and pull tabs, of Title 5, Business Licenses and Regulations; amending Chapter 9.08, Offenses Against Public Peace and Decency, Section 9.08.030, Gambling-Permitted if authorized by state law-Limitation, and repealing Chapter 9.08, Offenses Against Public Peace and Decency, Section 9.08.040, Violations by owner or occupant of premises where gambling conducted, of Title 9, Public Peace and Welfare, of the code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Luna)

RESOLUTION – Authorizing the addition of twenty-nine (29) structures and removal of two (2) structures in the Downtown Cheyenne Historic District from the Contributing Structures List maintained by the City’s Planning office. Stephanie Lowe, Planning and Development office, provided an update on the status of communication with property owners whose structures are involved in either being added to or removed from the List. Christina Bird, Chairperson, Cheyenne Historic Preservation Board, explained compliance with federal requirements relating to the “opt in” provision had been met, noting that property owners who have not “opted out” will have their properties automatically included on the List. Amy Smith commented on a Downtown Cheyenne Historic District report with regard to classification of properties and the contributing rating system. She submitted a copy of her comments (on file with City Clerk’s office) and requested consideration by the governing body to reclassify the building referred to as Bart’s Flea Market, owned by her parents, from C-2, Contributing, to NC-1, Noncontributing Nonintrusive. She explained that “opting out”, which they have done, from being included in the List is different from how the building is classified. Upon inquiry, Ms. Lowe provided information on the “opt in/opt out” process; noted the classification report has no real authority, and stated if the Smith’s decided in the future they would like to have the building added to the List they can request to do so. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Roybal. Ms. Bird, upon inquiry provided further explanation of federal (Secretary of the Interior) standards regarding the “opt-out” provision. Comment followed on the number of communication letters that have not yet been returned to Ms. Lowe by property owners, and additional communication efforts by staff. Mr. Laybourn moved to postpone to September 25, 2017, seconded by Mr. Roybal. Upon inquiry, Ms. Lowe advised she was still waiting to hear from nine property owners and her most recent letters requested a response by August 31, 2017, and that the purpose of the resolution was not time sensitive. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Interior Heights, Fourth Filing, a replat of all of Blocks 146, 147, 148 and 149, Inclusive, Interior Heights,

Second Filing, City of Cheyenne, Laramie County, Wyoming; along with all of those adjacent rights-of-way contained within the plat boundary (including all of those intervening 15' alleys and all of those intervening portions of Kelley Avenue, Gadds Avenue and Holmes Avenue); and the remaining one-half (1/2) of those adjacent rights-of-way as shown (including E.40' York Avenue, N.30' 12th Street, W.40' Talbot Avenue and S.30' 11th Street), City of Cheyenne, Laramie County, Wyoming (located to the northwest of the intersection of W. College Drive and Grand Harmony Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Pershing Marketplace, 1st Filing, a replat of all of Block 1 (Lots 1 thru 4, inclusive), and all of Block 2 (Lots 1 thru 6, inclusive), and all of those 20' alley rights-of-way, adjacent to said Blocks 1 and 2, and all of May Place (60' R/W), adjacent to said Blocks 1 and 2, McCann Homesites, City of Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of E. Pershing Boulevard and N. College Drive) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Mission Village, situated in a portion of the S½SE¼ of Section 22, Township 14 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located north of and adjacent to Dell Range Boulevard, east of Griffith Avenue) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Thanking the Cheyenne 150th Anniversary Celebration Steering Committee – referred to Public Services Committee. (Sponsor – Mr. Laybourn)

[CA] RESOLUTION – Joining the City of Cheyenne to a Community-Wide Visioning and Planning Initiative – referred to Public Services Committee. (Sponsors – Mr. Case, Dr. Rinne, Mr. Roybal, Mr. Shanor)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming State Loan and Investment Board for a \$1.6 Million Loan from the Clean Water State Revolving Fund for funding the Dry Creek Interceptor Rehabilitation and authorizing the Board Director to sign all loan documents – referred to Finance Committee. (Sponsor – Mr. Laybourn)

[CA] Memorandum of Understanding between the City of Cheyenne, Wyoming, and Cheyenne Firefighters Local Union No. 279, International Association of Firefighters, for the purpose of clarifying the intent of Section 23, Working in a Higher Job Rank. Motion (per Consent Agenda) carried. (#6725)

[CA] Memorandum of Understanding between Laramie County School District Number One, Sunflower Ridge L3C, and the City of Cheyenne, Wyoming, for drainage improvements, Buffalo Ridge Subdivision. Motion (per Consent Agenda) carried. (#6726)

[CA] Contract Modification No. 2 to Contract No. 6457 between the City of Cheyenne and FCI Constructors of Wyoming LLC, for additions and renovations to the Waste Transfer Station Project. Motion (per Consent Agenda) carried. (#6457)

[CA] Contract Modification No. 1 to Contract No. 6498 between the City of Cheyenne and DHM Design Corporation to move funds from Task 4, Construction Administration, to Tasks 1 and 2, Preliminary and Final Design, for engineering design services for the Civic Center Commons / West Edge Project. Motion (per Consent Agenda) carried. (#6498)

[CA] Contract Modification No. 1 to Contract 6628 between the City of Cheyenne and Pole Mountain Electric, Inc. for the Dell Range/Yellowstone Signal Upgrade Project. (2011-2014 1% Sales Tax) – referred to Finance Committee.

[CA] Amendment to Contract No. 6630, Professional Services Agreement for Benefit Consulting Services between the City of Cheyenne and NOVO Benefits LLC (f/k/a Corporate Benefits Consortium, LLC) – referred to Finance Committee.

[CA] Amendment No. 1 to Memorandum of Understanding (Contract No. 6680) between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City. (Revenue to City) – referred to Finance Committee.

Approval of Appointment of City Officials: Robert Briggs, Director of the Planning and Development Department; Ronald Downey, City Treasurer; Greg Hoggatt Sr., Chief of the Cheyenne Fire and Rescue Department, and Teresa Moore, Director of the Community Recreation and Events Department. Mr. Roybal moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointees). Mayor Orr announced the oath of office for the new department directors would be administered tomorrow morning, September 12th, at 9:00 a.m. at the Cheyenne Public Safety Center and Council members, staff and the public were welcome to attend. Mayor Orr introduced the new directors.

[CA] Community Facilities Fees Report for Fiscal Year 2016-2017. Motion (per Consent Agenda) carried.

Under other business:

Mr. Laybourn commented on a recent situation involving the City Engineer and his personal attorney; noted that word has been received from the FEMA Region 8 office that the cost/benefit analysis (for the Civic Center Commons Project) has met the standard, and requested an executive session of the governing body be scheduled in the near future to discuss affiliated personnel and legal matters. Also under other business, Mr. White stated for the record that the word from FEMA proves no fraud by the City on the matter.

T.J. Kallas expressed student pedestrian safety concerns involving traffic at St. Mary’s School, particularly on O’Neil Street, and requested flashing and children playing signage be installed, and crosswalks around the school be painted. Mayor Orr advised she would discuss the topic with staff.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:45 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
September 22, 2017